

Andhra Pradesh (Andhra Area) Inams (Assessment) Rules, 1955

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State of Andhra Pradesh - Act

Andhra Pradesh (Andhra Area) Inams (Assessment) Rules, 1955

ANDHRA PRADESH

India

Andhra Pradesh (Andhra Area) Inams (Assessment) Rules, 1955

Rule ANDHRA-PRADESH-ANDHRA-AREA-INAMS-ASSESSMENT-RULES-1955 of 1955

Published on 27 December 1955

Commenced on 27 December 1955

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Andhra Pradesh (Andhra Area) Inams (Assessment) Rules, 1955

Published vide in Andhra Pradesh Gazette Rules Supplementry, Part 1, (Extraordinary,) pages 627, dated 27.12.1955. (G.O.Ms. No. 2803, Revenue, dated 27/12/1955)

In exercise of the powers conferred by Section 10 of the Andhra Inams (Assessment) Act, 1955 (Andhra Act 17 of 1955), the Governor of Andhra hereby makes the following rules:

Rules

1.

These rules may be called the Andhra Pradesh (Andhra Area) Inams (Assessment) Rules, 1955.

2.

In these rules:

(1)

'Act' means the Andhra Inams (Assessment) Act, 1955.

(2)

'Form' means the form appended to these rules.

3.

Before making the assessment on inam lands under the Act, the Collector shall publish in the District Gazette, a draft notification specifying the particulars mentioned in Section 3(2)(a), together with a Notice as in Form I. The draft notification and notice shall also be published:

(i)

by affixture in the village chavadi of the village which the inam lands are situated, or if there is no village chavadi, in some conspicuous place in the village;

(ii)

by beat of tom-tom in the village in which the inam lands are situated;

(iii)

by affixture on the notice board of the Taluk Office and the Revenue Divisional Office concerned, and

(iv)

[by serving individual notice to persons affected by Registered Post or by issue of process]

[Added by G.O.Ms. No. 186, Revenue, dated 26.11.1962, Published in Andhra Pradesh Gazette, dated 13.12.1962, Rules Supplimentry, Part I, page 850.]

Explanation: For the purpose of this rule; the words "Taluk Office" shall include the office of Estate Manager where the Estate Manager is of the rank of a Tahsildar or a Deputy Tahsildar, and the words "Revenue Divisional Office" shall include the office of an Estate Manager where such Manager is of the rank of a Revenue Divisional Officer.

4.

When the Collector makes an inquiry under [Section 3]

[Substituted by ibid.]

he shall have, in addition to the powers vested in him by the Madras Revenue Summons Act, 1869, also the power to examine on oath any person summoned by him, and reduce into writing any statement made by the person so examined.

5.

A copy of every order passed by the Collector under Section 3(2)(a) of the Act shall be sent by registered post, acknowledgement due, to the inamdar or other person interested whose objections have been considered in connection with the passing of the said order.

6.

Every appeal to the District Collector against the decision of the Collector under Section 3(2)(a) of the Act, shall be filed within thirty days from the date of receipt of the decision and shall be accompanied by an authentic copy of the order appealed against.

7.

If the District Collector hearing an appeal considers that any further evidence is necessary, he may himself take such evidence, or direct it to be taken by any other officer subordinate to him specifying the points on which such evidence is necessary, and for this purpose the District Collector or the officer aforesaid shall exercise all such powers as the Collector is empowered to exercise by Rule 4. A copy of the order passed by the District Collector shall be sent by registered post, acknowledgement due, to the inamdar or other person interested.

8.

Nothing in the these rules shall prevent the appellate authority from rejecting an appeal summarily after giving the appellant an opportunity of being heard.

9.

The particulars relating to the inam lands and the rates of assessment leviable thereon as decided by the Collector or if an appeal has been preferred against the Collector's decision, as decided by the District Collector, shall be published by a notification as in Form II, in the District Gazette and in the other modes specified in Rule 3.

Form - I

Draft Notification

In pursuance of Section 3(9)(a) of the Andhra Pradesh (Andhra Area) Inams (Assessment) Act, 1955 (Andhra Act XVII

of 1955), it is proposed to levy on the inams noted in the Schedule appended hereto, assessment at the rates shown against them:

Notice is hereby given that the levy of assessment as noted in the Schedule will be taken up for consideration on or after.....(date) and that the inamdars or other persons interested in the lands are required to lodge before the undersigned, on or before.....a statement in writing of their objections, if any, to the proposed assessment.

Any objection statement which does not clearly explain the nature of the sender's interest in the land is liable to be summarily rejected.

Schedule

District

Taluk

Name of the village

T.D. No.

Survey Number

Wet or dry

Extent

Quit rent, kattubadi or jodi payable to Govt.

(1)

(2)

(3)

(4)

(5)

(6)

Kattubadi or jodi payable to the landholder

Rate of assessment finally fixed

Final Assessment

Remarks

(7)

(8)

(9)

(10)

Collector

Form II

Final Notification

In exercise of the powers conferred by Section 3(3) of the Andhra Pradesh (Andhra Area) Timms (Assessment) Act, 1955 (Andhra Act XVII of 1955), it is hereby notified that it has been finally decided to levy assessment under the said Act on the lands specified in the Schedule below at the rates shown against them in column (8).

Schedule 2

District

Taluk

Name of the village

T.D. No.

Survey Number

Wet or dry

Extent

Quit rent, kattubadi or jodi payable to Govt.

(1)

(2)

(3)

(4)

(5)

(6)

Kattubadi or jodi payable to the landholder

Rate of assessment finally fixed

Final Assessment

Remarks

(7)

(8)

(9)

(10)

Collector

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